



WHAT TO DO IF A JUDGE ASKS YOUR ABOUT YOUR CLIENT'S IMMIGRATION STATUS

IMPORTANT NOTE: This advisory is for use of defense counsel, as it sets out possible defense strategies. RIAC has a separate advisory which can be handed to judges directly.

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PLEASE DO NOT SUBMIT THIS DOCUMENT TO THE COURT

ADVICE FOR ATTORNEYS

1. **Do not let the client answer**, but instead ask to approach the bench.
2. **Explain to the judge OFF THE RECORD**, that judicial inquiries about a specific defendant's nationality, manner of entry to the U.S. - or anything related to their immigration status:
 - a. May violate the defendant's 5th amendment right against self-incrimination (because in certain circumstances, confirming any information relating to immigration matters could potentially involve an admission to a federal offense);
 - b. Mean the court believes such information is relevant to the decisions it intends to make in the case. A court may generally not base a decision on account of a defendant's membership in a suspect classification (such as national origin or alienage);
 - c. Can improperly intimidate the defendant into waiving their right to remain silent and taint all subsequent proceedings.
3. **Remind the judge OFF THE RECORD**, that:
 - a. IF in fact your client is not a U.S. citizen, it is the duty of defense counsel to ascertain the client's exact immigration status and get the proper immigration advice under the 6th amendment. The judge cannot (and must not) attempt to interfere with counsel's duties under the 6th Amendment;
 - b. The judge's duty - for example, under *People v. Peque* - is only to warn **all** defendants that **if** they are a non-citizen, there could be immigration consequences, and admonish them to seek advice on that topic from their attorney if appropriate. If judges do not warn **all** defendants, they can easily be accused of treating some defendants differently than others, on account of a suspect classification, such as race or national origin.

- c. Nobody in the courtroom is an immigration lawyer. As such, making any statements on the record about immigration matters invites being reversed on appeal - as those conclusions are likely to be incomplete at best and wholly inaccurate at worst.
- 4. **Provide the Judge our JUDICIAL advisory (which is different to this one), [available here](#)**
- 5. **If the judge will not go off the record to discuss, or insists on questioning your client regarding immigration information on the record, then:**
 - a. Advise your client of their 5th amendment right to object to any such questions;
 - b. State only that, to the extent it might be applicable, you (counsel) have and will provide any and all advice which is required to provide the effective assistance of counsel.
 - c. Contact RIAC immediately;

AUTHORITIES & CASELAW

A. **NY CASELAW CONFIRMS JUDGES SHOULD NOT INQUIRE ABOUT IMMIGRATION STATUS**

In *People v. Ulanov*, 188 A.D.3d 1271, 1272–73, 132 N.Y.S.3d 812 (2020), the 2nd Department reiterated that **judges should not ask about immigration status** then act upon the defendant’s response – but should instead only provide warnings to all defendants appearing before them:

"As we explained in *People v. Williams*, “**a trial court should not ask a defendant whether he or she is a United States citizen** and decide whether to advise the defendant of the plea's deportation consequence based on the defendant's answer. Instead, a trial court should advise all defendants pleading guilty to felonies that, if they are not United States citizens, their felony guilty plea may expose them to deportation” (*People v. Williams*, 178 A.D.3d at 1096, 115 N.Y.S.3d 401; see *People v. Palmer*, 159 A.D.3d at 121, 69 N.Y.S.3d 638; see also *People v. Peque*, 22 N.Y.3d at 196, 980 N.Y.S.2d 280, 3 N.E.3d 617)." (emphasis added) *Id.* at 813.

B. **JUDICIAL QUESTIONS ABOUT IMMIGRATION STATUS CAN VIOLATE THE 5TH AMENDMENT RIGHT AGAINST SELF-INCRIMINATION**

An individual’s right under the Vth Amendment to avoid self-incrimination applies “to any official questions put to him [or her] in any other proceeding, civil or criminal, formal or informal, where the answers might incriminate him [or her] in future criminal proceedings.” *Lefkowitz v. Turley*, 414 U.S. 70, 77 (1973)

Statements about alienage made on the record in criminal court, either orally or in writing, including on plea forms, could be used as evidence in support of other criminal charges for offenses in which immigration status is an element, such as the federal crimes of illegal entry and illegal reentry following deportation, 8 U.S.C. §§ 1325, 1326, respectively.¹ Thus, requiring defendants to disclose their citizenship/immigration status risks compelling individuals to incriminate themselves.

C. JUDICIAL QUESTIONS ABOUT IMMIGRATION STATUS CAN VIOLATE THE 5TH AMENDMENT RIGHT TO DUE PROCESS

Unless immigration status is explicitly relevant to a material issue in the case, judges may not seek its disclosure because such inquiry may have an *in terrorem* effect upon a defendant, who may be intimidated and inhibited from pursuing his or her legal rights. See *Campos v. Lemay*, 2007 U.S. Dist. LEXIS 33877, 24-25 (S.D.N.Y. 2007) (recognizing that danger of intimidation from inquiring into defendant's legal status during proceedings could affect defendant's ability to vindicate his or her legal rights). Other courts have similarly recognized the risk related to questioning immigration status on the record. See, e.g. *Flores v. Amigon*, 233 F. Supp. 2d 462, 464 (E.D.N.Y. 2002); *Topo v. Dhir*, 210 F.R.D. 76, 78 (S.D.N.Y. 2002); *Zeng Liu v. Donna Karan Int'l, Inc.*, 207 F. Supp. 2d 191, 193 (S.D.N.Y. 2002)

D. JUDICIAL QUESTIONS ABOUT IMMIGRATION STATUS CAN VIOLATE THEIR ETHICAL OBLIGATIONS

Judges are obliged to:

- Uphold the judiciary's integrity and independence (see 22 NYCRR 100.1),
- Avoid impropriety and its appearance in all their activities (see 22 NYCRR 100.2), and
- Act at all times in a manner that promotes public confidence in the integrity and impartiality of the judiciary (see 22 NYCRR 100.2[A]).

¹ Examples of federal crimes for which "alienage" is an element of the offense include:

8 U.S.C. 1282(c) – Alien crewman overstays;
8 U.S.C. 1306(a) – If overstay after 30 days and no fingerprints/registration;
8 U.S.C. 1304(e) – 18 or over not carrying INS documentation;
8 U.S.C. 1306(b) – Failing to comply with change of address w/in 10 days;
8 U.S.C. 1324c(e) – Failure to disclose role as document preparer;
8 U.S.C. 1324(a) – Alien smuggling;
8 U.S.C. 1325 – Entry Into United States without inspection or admission;
8 U.S.C. 1326 – Illegal Reentry after deportation;
18 U.S.C. 1546 – False statement/fraudulent documents;
18 U.S.C. 1028(b) – False documents;
18 U.S.C. 1001 False statement;
18 U.S.C. 911, 1015 – False claim to U.S. citizenship.

As discussed in NYS Advisory Committee on Judicial Ethics Opinion 10-196, if a judge asks a specific defendant about their immigration status:

- It can appear as though they are attempting to perform the role of civil immigration enforcement - which has no bearing on state criminal proceedings (and therefore makes the judge assume the role of a civil immigration officer)
- It can appear that they intend to use that information to treat non-citizens differently than citizens (why else would a judge ask the question unless they intend to use it in some way?)

As a result, although asking may be technically permissible *in some very limited circumstances*, immigration status is almost always irrelevant to a local criminal proceeding - and opens up a judge to claims of violations of the code of judicial conduct.